

ATTACHMENT 3

Pre-proposal conference – Multi Purpose Room

U.S. Embassy Libreville

Date: April 4, 2025

Minutes from Pre-Proposal Conference of April 4, 2025, at 10:00.

Definition

Government: Government of the United States of America

COR: Contracting Officer Representative

CO: Contracting Officer

GOVERNMENT: The Government of the United States Embassy of America.

Introduction

A Pre-Proposal Conference was held on April 4, 2025, at 10:00.

Attendance:

Companies: Six different companies participated.

Embassy Staff

Carine Lartey - Human Resources Specialist / Contracting Officer Representative (COR).

Nathaniel Rudy - General Services Officer / Contracting Officer (CO).

Althena Atkins – Office Management

Melanie Ambourouet - Procurement Supervisor

Judith Abourou - Contract assistant

Wilfrid Ndoutoume - Procurement Assistant.

Discussion of the Solicitation Package

The following sections of the solicitation were highlighted:

The offer

Vendors were reminded that offers shall be in two (2) distinct volumes and include:

1. Section 1 Pricing (SF-1449, pricing tables in Section 1 and DBA Insurance premium cost).
2. Section 3, Technical Proposal criteria (Technical, SAM Registration, Section 5, Representations and Certifications)

Vendors were also instructed to provide a completed list of references which shall include dates of contracts, places of performance, value of contracts, contact names, telephone numbers and email addresses).

(Refer to solicitation Section 3 for more details).

Emphasis was also placed on all legal documents which have to be part of their offer (refer to section 3).

Vendors were encouraged to provide proper offers with sufficient details to allow a good evaluation of the bids. It was also explained that offers shall demonstrate that vendors understand our requirement and response shall be in line with the terms of our solicitation.

Vendors were reminded that the Government performs a strict evaluation in line with both Section 3 and 4, and as such, will not hesitate to cancel the solicitation if offers do not meet the terms of our solicitation.

Payment of Invoice:

For payment, invoice shall follow guidance provided in DOSAR 652.232-70 (on page 49).

The Government explained that this is an IDIQ contract (Indefinite Delivery Indefinite Quantity) type of contract. Orders are confirmed via Task Orders and invoices shall indicate the specific Task Order.

Scope of Work

The Contract assistant did a thorough review of the scope of work in Section 1 and Attachment 1 and vendors could ask questions for clarification.

Solicitation & Contract clauses

Offerors were asked to pay special attention to the following clauses:

(2) [52.204-23](#), Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab and Other Covered Entities (Jul 2018) (Section 1634 of Pub. L. 115-91).

(3) [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Aug 2020) (Section 889(a)(1)(A) of Pub. L. 115-232).

52.228-3 Worker's compensation Insurance (JUL 2014)

52.228-5 Insurance-work on a government installation (JAN 1997)

52.229-6 Foreign fixed price contracts (FEB 2013)

52.217-8 Option to extend services (NOV 1999)

52.217-9 Option to Extend the Term of the Contract (MAR 2000)

52.232-19 Availability of funds for the next fiscal year (APR 1984)

652.204-70 Department of state personal identification card issuance (MAY 2011)

Offerors were advised that this new solicitation is now impacted by the new Executive Orders 14128, 14208, 14148, 11246 and 14173.

As a result, EO 11246, Equal Employment Opportunity, will no longer be enforced.

Therefore, contractors and their subcontractors will not be held accountable for applying the FAR clauses or provisions outlined in FAR subpart 22.8 - Equal Employment Opportunity or the associated provisions and clauses prescribed at FAR 22.810.

Also, offerors are now required to sign the “Certification regarding Compliance with Applicable Federal Anti-discrimination Law”.

SAM Registration

The Government reinforced the importance to start the registration process in SAM right away, since this is mandatory for the current contract, and prospective contractors shall be registered in the SAM database at time of submittal of an offer (FAR 4.1102).

Offerors were also informed that the System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in agency solicitations. Examples include 52.222-25, Affirmative Action Compliance, and paragraph (d) of 52.212-3, Offeror Representations and Certifications—Commercial Products and Commercial Services.

Contracting officers will not consider these representations when making award decisions or enforce requirements. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

During the conference, a prospective offeror made a comment regarding the difficulty of completing the registration for local suppliers. The Government acknowledges that the process can be burdensome, and this is in fact the reason why all prospective offerors are encouraged to start immediately the registration process.

Furthermore, Procurement office is willing to assist potential vendors by providing supplemental guidance documents which are normally available at sam.gov (refer to the last part of the Question & Answer section in this document).

Evaluation factors

The evaluation factors were presented to the vendors (Compliance review, technical acceptability, price analysis, determination of responsibility, SAM registration and Defense Base Act Insurance).

Questions:

The attached questions were asked during the conference:

Vendors were informed that they are allowed to ask further questions up until Friday April 11, 2025, at 1200, local time.

Conclusion

The conference concluded and attendees were thanked for their presence and expression of interest in serving the U.S. Government. The meeting was adjourned at 11:05.

Enclosure: Questions and Answers (1 to 7).

Questions & Answers

1 – Could you confirm the number of students per class?

Answer:

There are two types of sessions “Individual class” with one student and a “Group class” with a maximum of five students.

2 – In your solicitation, it is stated that the Embassy is opened Monday to Thursday 0800 – 1730 and Friday 0800 – 1300. Do you expect us to provide class throughout the day?

The Contractor is NOT expected to provide classes throughout the day. However, classes will be provided based on an agreed planning with the COR.

3- What is the contract commencing date?

Answer:

The Contract is scheduled to start on July 1, 2025.

4- in terms of class settings, will each student have a computer, are we allowed to bring in our personal computer in the Embassy?

Answer:

Computers from contractors are not allowed inside the compound. At this point in time, the Embassy does not plan to have computers available for student. The Government computer may be made available for use by the instructor. This will depend on the decision of our Diplomatic Technology Office.

5– You have mentioned that this new solicitation is now impacted by the new Executive Orders 14128, 14208, 14148, 11246 and 14173, what are we supposed to do to be in line with this change, how does it affect us as contractors?

Answer:

To be in line with the new Executive Orders, Offerors are now required to sign the “Certification regarding Compliance with Applicable Federal Anti-discrimination Law” and include it in their offer.

In essence, all contractors shall certify that they do not operate any programs promoting DEI that violate any applicable anti-discrimination laws and agree that such certification is material for purposes of the government's payment decision and therefore subject to the False Claims Act.

6– Will this be a multi award contract?

Answer:

No, this will not be a multi award contract.

7– Could you confirm if the documents to be provided for staff security certification need to be in English language?

Answer:

Please note that the following documents are required for this purpose. Kindly take note of the items that shall be provided in English:

- OVQ Form (this electronic form will be provided by the Government) - **English**
- Copy of Diplomas (if applicable); **No translation required**
- Copy of Birth Certificate; **No translation required**
- Certificate of Employment from previous Employer (if applicable); **No translation required**
- Two passport-sized photos; **n/a**
- Copy of National ID/ Passport / Residence Permit; **No translation required**
- No-conviction record check (valid for 3 months); **No translation required**
- Curriculum Vitae; **English**
- Sketch of your residence location. **No translation required**

7– Could you confirm if the documents to be provided for staff security certification need to be in English language

No questions were asked for SAM registration, but the Government would like to share again the steps to be followed for that purpose.

Step 1 – Get an NCAGE Code

- An NCAGE is required for all foreign entities otherwise the registration will be considered incomplete.
- The vendor can submit their request for an NCAGE Code by going to the NATO Support Activity (NSPA) NCAGE Request Tool at <https://eportal.nspa.nato.int/AC135Public/scage/CageList.aspx>
- After the vendor requests the NCAGE code, the vendor will have to search BINCS to see if their information has been received.
- Some countries may take several weeks for the information to be sent to BINCS. We noted that for Gabon, it takes 48 to 72 hours.
- Once the information has been received by BINCS the vendor can now start the registration process for SAM
- **Please note that the legal business name and physical address MUST be exactly the same in all systems: NCAGE and SAM.**
- **The address has to be a street address containing no special characters.**

Step 2 – Get a Unique Entity Identification Number (UEI)

- Before a company can register in SAM, the vendor must also get a UEI Number. Please visit www.sam.gov for that purpose.

You will be required to provide legal business documents in both original and English versions (certified translation).

Step 3 – Register in SAM

- To start your registration log back to www.sam.gov .
- You need to have all the necessary information regarding your company (number of employees, your average income, key contact for SAM, etc...).
- SAM imports the NCAGE information and compares it. If the information is not exactly the same, the vendor will not be able to register in SAM.

The Embassy is not responsible for any information or processing by the General Services Administration for SAM registration. The steps provided above are for informational and administrative purposes only. Only the SAM.gov website and GSA can provide the precise instructions, requirements, and approvals for SAM registration.”

Attached to this Minutes of Meeting, we are also adding the Entity registration checklist for further information.